



WBENCLink 2.0 Data Access Agreement

Specific Use of Data Obtained From Access to WBENCLink 2.0 Database

This agreement addresses the misuse of the data available to certified WBEs and must be signed by the current majority owner and submitted with the required documentation package for certification and recertification.

The Company, represented by the signatory below, may use WBENCLink for the purpose of applying for certification or recertification and shall not use or permit WBENCLink to be used for any unauthorized or unlawful purpose. Neither WBENCLink nor any of the information or access available to Company or Authorized Users through WBENCLink shall be used to post, transmit or relay (a) any bulk or unsolicited advertising, promotional/marketing materials, or chain letters; (b) any material that infringes or misappropriates any third party's copyright, trademark, trade secret, patent, or other proprietary rights; (c) any material that is false, inaccurate, fraudulent, or misleading; or (d) any unlawful, harmful, defamatory, pornographic, obscene, vulgar, threatening, harassing or otherwise objectionable material.

In the event Company or any Authorized User violates or does not comply with any of these restrictions, WBENC shall have the right, in WBENC's sole discretion and without any notice, liability or responsibility to Company or any Authorized User, to terminate, suspend, block or otherwise restrict or limit Company's or Authorized User's access to and use of WBENCLink and to remove from WBENCLink any or all material or information posted there by Company or Authorized User.

Failure to Comply:

If it is determined that a company is in violation of this Agreement, the following actions will take place.

1st Violation: Email from the WBENCLink Support Desk to current owner notifying her of the abuse.

2nd Violation: Certified Cease and Desist letter from the WBENC Vice President, Certification or authorized representative.

3rd Violation: Suspension of company's ability to search the WBENCLink database for the duration of their current certificate term.

I have read and agree to the above terms of use for WBENCLink.

Female Owner Signature: _____ Date: _____